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Attorneys for the *Deseret News*, Deseret Digital Media,
Inc. d/b/a KSL.com, KSL-TV, KSL NewsRadio, KUTV
2News, the Radio Television Digital News Association,
and the Utah Headliners Chapter of the Society of
Professional Journalists

IN THE FOURTH JUDICIAL DISTRICT COURT

UTAH COUNTY, STATE OF UTAH

STATE OF UTAH, Plaintiff, v. TYLER JAMES ROBINSON, Defendant.	MOTION FOR LIMITED INTERVENTION Case No. 251403576 Hon. Tony F. Graf, Jr.
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Proposed Intervenors the *Deseret News*, Deseret Digital Media, Inc. d/b/a KSL.com, KSL-TV, KSL NewsRadio, KUTV 2News, the Radio Television Digital News Association, and the Utah Headliners Chapter of the Society of Professional Journalists (collectively, News Media) hereby move the Court for leave to intervene in the above-captioned case for the limited purpose of opposing any motion or request to prohibit or otherwise restrict public or news media access to any proceeding, as well as any court record or other information classified as public, including electronic media coverage, to seek to unseal any such proceeding or record that has been sealed or closed to the public, and to potentially oppose in whole or in part any motion

seeking a gag order and/or seek to modify any existing such order. The News Media do not seek to participate in any proceedings in this case that do not involve such matters.

This Motion is made pursuant to [Rules 7 and 24 of the Utah Rules of Civil Procedure](#), [Rules 4-202.04\(2\)\(B\) & \(5\) and 4-401.01 of the Utah Rules of Judicial Administration](#), and the Utah Supreme Court's decisions in [Society of Professional Journalists v. Bullock](#), 743 P.2d 1166, 1174-75 & n.9 (Utah 1987), and [Kearns-Tribune Corp. v. Lewis](#), 685 P.2d 515, 518 (Utah 1984), which establish the news media's right to appear and be heard on matters of access to judicial proceedings.

INTERESTS OF THE INTERVENORS

1. The *Deseret News* is a daily newspaper based in Utah engaged in the business of gathering and disseminating news and information of interest to the general public through a newspaper and the internet. The *Deseret News* regularly reports on proceedings in this District and has reported on the above-captioned case.

2. Deseret Digital Media, Inc. d/b/a KSL.com, KSL-TV, and KSL NewsRadio (collectively, KSL) are news organizations based in Utah engaged in the business of gathering and disseminating news and information of interest to the general public through television, radio, and the internet. KSL regularly reports on proceedings in this District and has reported on the above-captioned case.

3. KUTV 2News (KUTV), which is owned and operated by a series of wholly owned subsidiaries of Sinclair, Inc., is a news organization based in Utah engaged in the business of gathering and disseminating news and information of interest to the general public through television and the internet. KUTV regularly reports on proceedings in this District and has reported on the above-captioned case.

4. The Radio Television Digital News Association (RTDNA) is the world's largest professional organization devoted exclusively to advocating for the interests of broadcast and digital journalists and the members of the public they serve by seeking and reporting the truth. Founded as a grassroots organization in 1946, RTDNA's mission is to promote and protect responsible journalism. RTDNA defends the First Amendment rights of journalists in Utah and throughout the country, honors outstanding work in the profession through the Edward R. Murrow Awards, and provides journalists with training to encourage ethical standards, newsroom leadership, and innovation.

5. The Utah Headliners Chapter of the Society of Professional Journalists (SPJ) is a voluntary, not-for-profit professional association of news reporters, editors, photographers, publishers, and owners of various news organizations throughout the State of Utah. SPJ's members regularly report on proceedings in this District, including the above-captioned case.

LEGAL BASIS FOR LIMITED INTERVENTION

The news media has standing to intervene in judicial proceedings to which it is not otherwise a party for the purpose of opposing closure, and further has a right to be heard in opposition to the closure of any proceeding or court record. *See, e.g., Bullock*, 743 P.2d at 1174-76 & n.9; *Kearns-Tribune*, 685 P.2d at 518 (news media “clearly has standing to contest the closure”); *Richmond Newspapers, Inc. v. Virginia*, 448 U.S. 555, 562 (1980) (deciding challenge brought by newspaper as intervenor); *Globe Newspaper Co. v. Superior Court*, 457 U.S. 596, 609 n.25 (1982) (“[R]epresentatives of the press and general public ‘must be given an opportunity to be heard on the question of their exclusion.’” (citation omitted)).

“Most courts—including this one—that have addressed the issue have held that permissive intervention is an appropriate procedure for non-parties seeking to intervene in an

action for the limited purposes of gaining access to judicial records or opposing closure of proceedings.” *Angilau v. United States*, No. 2:16-cv-992, 2017 WL 9496068 (D. Utah July 27, 2017) (collecting cases, and granting motion for limited intervention by news media for purposes of opposing closure); see also *SanMedica Int’l v. Amazon.com Inc.*, No. 2:13-cv-169, 2015 WL 6680222, at *2 (D. Utah Nov. 2, 2015) (“[P]ermissive intervention is the correct procedure for non-parties who seek access to judicial records.”) (citing *United Nuclear Corp. v. Cranford Ins. Co.*, 905 F.2d 1424, 1427 (10th Cir. 1990)).

“The right to intervene to challenge a closure order is rooted in the public’s well-established right of access to public proceedings.” *SanMedica*, 2015 WL 6680222, at *2 (cleaned up). When a party seeks to intervene for the limited purpose of challenging sealing, “relaxed standards” under Rule 24 apply. *Id.*; see also *Pansy v. Borough of Stroudsburg*, 23 F.3d 772, 778 (3d Cir. 1994) (“[T]he procedural device of permissive intervention is appropriately used to enable a litigant who was not an original party to the action to challenge protective or confidentiality orders entered in that action.”); *Richmond Newspapers*, 448 U.S. at 562. This is why courts in this state, including in this District, routinely grant requests in criminal proceedings for limited intervention by the news media.¹

The News Media have a direct and substantial interest concerning entry of any order that restricts access of the public or the news media to proceedings or records in this case, and to

¹ See, e.g., *State v. Baum*, No. 181401062 (Utah 4th Dist. Ct.) (Dkt. 882, July 1, 2020); *State v. Black*, Nos. 121400754, 121400756, and 121400925 (Utah 3d Dist. Ct.) (Dkt. 350, March 9, 2017); *State v. Masina*, No. 161909635 (Utah 3d Dist. Ct.) (Dkt. 38, Dec. 9, 2016); *State v. Roman*, No. 101700001 (Utah 4th Dist. Ct.) (Feb. 1, 2010); *State v. Chavez-Reyes*, No. 101700003 (Utah 4th Dist. Ct.) (Dkt. 29, Jan. 26, 2010); *State v. Allgier*, No. 071904711 (Utah 3d Dist. Ct.) (Sept. 5, 2008); *State v. Jeffs*, No. 061500526 (Utah 5th Dist. Ct.) (May 25, 2007; June 13, 2007); *State v. Mitchell*, No. 031901884 (Utah 3d Dist. Ct.) (Jan. 30, 2004; April 12, 2004).

orders to inhibit newsgathering regarding the same, and no existing party fully or adequately represents that interest. “That potential injury—denial of public access—is clearly traceable to the sealing of records, and that possible injury can be redressed by” granting limited intervention. *Angilau*, 2017 WL 9496068, at *4. Further, the granting of limited intervenor status to the News Media for the limited purposes for which intervention is sought will not unduly delay these proceedings nor prejudice in any way the rights of the parties. *See id.* at *4 (“[T]he proposed intervention concerns an ancillary issue—access to judicial records and proceedings—and will not disrupt the resolution of the underlying merits of the case.”).

This law is so well settled that, most of the time, no one objects to limited intervention by the news media. But Defendant here has chosen to do so.² His objections are not compelling.

First, Defendant argues that there is “no precedent” for allowing limited intervention to the news media for the purpose of preserving public access. That is obviously wrong, as the above authority indicates. Defendant’s related argument that Rule 24 does not apply to criminal proceedings is likewise misplaced. “Every court of appeals to have considered the matter has come to the conclusion that Rule 24 is sufficiently broad-gauged to support a request of intervention for the purposes of challenging confidentiality orders.” *SanMedica*, 2015 WL 6680222, at *2 (cleaned up). Defendant’s reliance on *F.L. v. Court of Appeals*, 2022 UT 32, 515 P.3d 421, the sole case he cites for this argument, is bizarre to say the least. In that case, the Utah Supreme Court *reversed* the decision of the Court of Appeals because it “made a mistake of law and so abused its discretion in *not allowing* F.L. to intervene as a limited purpose party.” *Id.* at ¶ 5 (emphasis added). F.L., the alleged victim, sought to intervene to protect her privacy interests in records she wanted sealed. The footnote Defendant cites only says that F.L. need not

² Defendant’s Response to Motion for Limited Intervention, Dkt. 185.

intervene as a “full-fledged party to the proceeding in every respect.” *Id.* at ¶ 37 & n.36. But the decision is unequivocal that “if the law gives [a person] the ability to proactively assert a right or seek a remedy, then they may enforce those specific rights as limited-purpose parties in criminal proceedings.” *Id.* at ¶ 37.

Here, it is beyond dispute that the law gives the news media standing to assert its interests, and those of the public at large, to access judicial proceedings and records. *Bullock*, 743 P.2d at 1174-76 & n.9; *Kearns-Tribune*, 685 P.2d at 518. As a result, whether this Court grants limited intervention status under Rule 24, as many other courts have done, or does so based on judicially recognized interests, as *F.L.* did, the result is the same—limited intervention should be granted.

Second, Defendant argues that he has a right to a fair trial. That, of course, is true. But Defendant does not connect that right to his argument against limited intervention, nor does he explain how conferring that status on the News Media would in any way impair his ability to receive a fair trial. If that incantation were all that was required, the news media would never be granted intervention in any criminal case. That is not the law. And whether any *particular* closure motion is justified by protecting Defendant’s fair trial rights under the rigorous constitutional test of *Press-Enterprise* and its progeny is a decision to be made on a motion-by-motion basis with a specific showing required by the proponent of closure. *Press-Enterprise Co. v. Superior Court*, 478 U.S. 1, 14 (1986). It is not a basis to deny limited intervention.

Third, Defendant suggests the News Media’s interests are fully protected by their ability to peruse the “public docket” and search for motions that may impair public access. That

assertion is not well-taken and is thoroughly rebutted by the State in its response.³ It would also render meaningless the distinction between members of the news media who have requested notice and members of the general public who have not—a distinction explicitly recognized in the law. Furthermore, Defendant’s argument would impair the right of timely access in a way the First Amendment does not tolerate. “Courts have noted that an important corollary to the public’s presumed access to judicial records is that when found appropriate, access should be immediate and contemporaneous.” *Angilau*, 2017 WL 9496068, at *6 (cleaned up). “[D]enial of the Motion to Intervene will potentially impair public access to judicial records and proceedings by precluding a timely assertion of common law and First Amendment rights.” *Id.* “Each passing day may constitute a separate and cognizable infringement of the First Amendment.” *Id.* (citation omitted).

Beyond that, limited intervenor status is essential to provide the News Media with appeal rights as to any closure decision. Even if the News Media is afforded the right to be heard, as the law mandates, it cannot invoke appellate jurisdiction unless it has at least limited party status. *See Utah Down Syndrome Found., Inc. v. Utah Down Syndrome Assoc.*, 2012 UT 86, ¶ 23, 293 P.3d 241. Otherwise, its only remedy would be to seek discretionary review as extraordinary relief, exactly the situation the *F.L.* court found should have been avoided by granting limited intervention. *F.L.*, 2022 UT 32, ¶ 32. Granting the News Media’s motion solves that problem, is more consistent with the role the law envisions as parties entitled to notice and an opportunity to be heard, and prejudices no one.

³ State’s Response to Motion for Limited Intervention and Request for Notice of Motions to Close, Seal, or Reclassify, Dkt. 187.

CONCLUSION

For all these reasons, the News Media respectfully request that the Court grant their Motion for Limited Intervention for the limited purposes set forth above.

RESPECTFULLY SUBMITTED this 24th day of November 2025.

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